

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Lai	Team: Team # 1	CCRB Case #: 201401252	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 01/30/2014 2:23 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/30/2015	Precinct: 70
Date/Time CV Reported Thu, 01/30/2014 3:05 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/07/2014 3:16 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Joshua Bienvenue	03464	945511	PBBS
2. DTS Richard Perez	02060	898275	ESS 06

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Smith	10419	907361	070 PCT
2. POM Paul Jackson	11920	949135	070 PCT
3. POM Junior Sesay	10765	949652	070 PCT
4. POM Michael Williams	3751	955665	PBBS
5. POM John Moran	03579	949361	070 PCT
6. POM Joseph Wendler	02802	886711	ESS 06
7. POM Mark Pihlava	07702	935514	070 PCT
8. POM Thomas Smith	10841	955513	PBBS

Officer(s)	Allegation	Investigator Recommendation
A . SGT Joshua Bienvenue	Abuse: Sgt. Joshua Bienvenue entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . DTS Richard Perez	Discourtesy: Det. Richard Perez spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . DTS Richard Perez	Force: Det. Richard Perez used physical force against § 87(2)(b)	C . Unsubstantiated

Case Summary

On January 30, 2014, at approximately 2:23 a.m., at § 87(2)(b) in Brooklyn, § 87(2)(b) and his girlfriend, § 87(2)(b) were involved in a dispute with each other. § 87(2)(b)'s roommate, § 87(2)(b) called 911. Numerous officers responded, including Sgt. Joshua Bienvenue and PO Michael Williams of Patrol Borough Brooklyn South, PO Paul Jackson, PO Junior Sesay, PO Mark Pihlava, and PO John Moran of the 70th Precinct, and PO Joseph Wendler and Det. Richard Perez of ESU. § 87(2)(b) and § 87(2)(b) did not answer repeated calls to open the apartment door. Officers forcefully opened the apartment door and entered the residence under Sgt. Bienvenue's supervision (**Allegation A**). Det. Perez allegedly called § 87(2)(b) a "motherfucker" and a "piece of shit" (**Allegation B**). Officers placed § 87(2)(b) on the ground, where Det. Perez allegedly punched § 87(2)(b) about the face approximately 30 to 40 times (**Allegation C**). § 87(2)(b) was arrested as a result of this incident. The CCRB was unable to contact § 87(2)(b) for a statement (encl. G1).

Mediation, Civil and Criminal Histories

This case was ineligible for mediation because § 87(2)(b) was arrested, suffered injuries, and expressed intent to file a Notice of Claim. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b) (encl. Q1-18).

Civilian and Officer CCRB Histories

This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. B3-4). Sgt. Bienvenue has been a member of the service for seven years and the CCRB substantiated allegations that he frisked, searched, and issued a retaliatory summons to a civilian in 2010 (encl. B1). Det. Perez has been a member of the service for 24 years and there are no substantiated CCRB complaints against him (encl. B2).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegations not pleaded

- Force: PO Jackson said that he punched § 87(2)(b)'s left ribs more than once because he refused commands to place his hands behind his back (encl. N6). § 87(2)(g) did not allege this.

Allegation A – Abuse of Authority: Sgt. Joshua Bienvenue entered § 87(2)(b) in Brooklyn.

It is undisputed that officers responded to a domestic dispute. § 87(2)(b) stated that he and § 87(2)(b) were only engaged in a verbal argument when police responded. He said that he

and § 87(2)(b) were embracing each other when § 87(2)(b) approached the front door. § 87(2)(b) asked, “What are you doing?” at which point § 87(2)(b) returned to her bedroom. Neither § 87(2)(b) nor § 87(2)(b) answered repeated calls by the police to open the door (encl. E4-5).

911 recordings indicated that § 87(2)(b) called for the police because she believed that § 87(2)(b) was being beaten by § 87(2)(b) (encl. P4). § 87(2)(b) told the CCRB that when the police knocked on the door, she went to open the door, at which point she saw § 87(2)(b) pinning § 87(2)(b) against the floor. § 87(2)(b) told her to “get the fuck back” in her room. § 87(2)(b) returned to her room because she feared retaliation from § 87(2)(b). Sgt. Bienvenue spoke with § 87(2)(b) over the telephone and she told him the circumstances of the incident. § 87(2)(b) remained in her room and she did not see what occurred between § 87(2)(b) and § 87(2)(b) (encl. F1).

Sgt. Bienvenue stated that § 87(2)(b) told him over the phone that § 87(2)(b) was choking § 87(2)(b) and told § 87(2)(b) to “get the fuck away from the door.” Sgt. Bienvenue requested ESU to open and gain entry into the apartment to rescue § 87(2)(b) (encl. K6). It is undisputed that Det. Perez and PO Wendler forcefully entered the apartment.

Officers are permitted to enter a home without a warrant to assist an injured occupant or to protect an occupant from imminent injury. The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need to protect life. The entry must not be primarily motivated to arrest or seize evidence, and there must be a reasonable basis to associate the emergency with the place to be searched. People v. Musto, 966 N.Y.S.2d 263, 264 (2013) (encl. A1-3).

§ 87(2)(g)

Allegation B – Discourtesy: Det. Richard Perez spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that Det. Perez called him a “motherfucker” and a “piece of shit” (encl. E4-5). § 87(2)(b) did not hear an officer make these statements (encl. F1). Det. Perez denied it and none of the officers interviewed admitted to hearing Det. Perez utter those remarks (encl. H5, I4, J20, K6, L9, M5, N6-7, O6). § 87(2)(g)

Allegation C – Force: Det. Richard Perez used physical force against § 87(2)(b)

§ 87(2)(b) stated that Det. Perez reached towards § 87(2)(b)'s chest and face. § 87(2)(b) swatted Det. Perez's hand away and held both arms to his face in a boxing stance. Officers then placed § 87(2)(b) on the ground, at which point he let his body go limp. Det. Perez punched § 87(2)(b) in the face and forehead several times. § 87(2)(b) repeatedly pulled his arm out of the officers' grasps and held it in front of his face to block the punches. Det. Perez continually punched § 87(2)(b) during this time. § 87(2)(b) estimated that he was punched by Det. Perez 30 to 40 times in total. The only command that officers gave him was, “Stop.” Thereafter, § 87(2)(b) was handcuffed (encl. E4-5).

There are no injuries to § 87(2)(b)'s face in his arrest photograph (encl. E1). In § 87(2)(b)'s medical records, he said that he was assaulted by the police when he was breaking into a house. § 87(2)(a) PHL § 18(6)

§ 87(2)(b) remained in her bedroom and heard, but did not see, what sounded like § 87(2)(b) running and officers saying, “Don’t run” and, “He’s trying to run.” § 87(2)(b) then heard what sounded like officers pushing § 87(2)(b) to the ground and repeatedly saying, “Get down on the floor.” She heard pushing sounds and at least one officer saying something to the effect of, “He’s trying to fight.” § 87(2)(b) did not see an officer punch or hit § 87(2)(b) (encl. F1).

Det. Perez and PO Wendler stated that they helped other officers handcuff § 87(2)(b) who was already on the floor and had his arms tucked underneath his chest, but they denied punching him (encl. H5, I4). PO Jackson testified that § 87(2)(b) pulled his arms underneath his chest and did not comply with repeated commands to place his hands behind his back. As a result, PO Jackson punched § 87(2)(b)'s left ribs more than once to gain his compliance. Det. Perez punched § 87(2)(b) at least once, but PO Jackson did not recall how many times he was punched and he did not see where § 87(2)(b) was hit (encl. N6). PO Pihlava stated that PO Wendler, Det. Perez, PO Sesay, and PO Jackson attempted to handcuff § 87(2)(b) but those officers blocked PO Pihlava's view and he was unable to see an officer punch § 87(2)(b) (encl. M5). Sgt. Bienvenue stated that Det. Perez, PO Wendler, and two to three other officers who he did not recall were attempting to place his arms behind his back. § 87(2)(b) stiffened and flailed his arms and legs to prevent the officers from handcuffing him. Sgt. Bienvenue's view was blocked by officers surrounding § 87(2)(b) and he did not see an officer punch § 87(2)(b) (encl. K6). PO Sesay said that § 87(2)(b) kicked with his legs and moved his arms and body about when he was being handcuffed, but he denied an officer punched him (encl. O6). PO Williams did not see how § 87(2)(b) was handcuffed and he did not see an officer punch § 87(2)(b) (encl. J20).

§ 87(2)(g)

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Team: _____

Investigator: _____

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Supervisor: _____

Title/Signature	Print	Date
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Reviewer: _____

Title/Signature	Print	Date
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Reviewer: _____

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